

1 ENGROSSED HOUSE
2 BILL NO. 4230

By: Kannady and Luttrell of the
House

3 and

4 Kern of the Senate

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8 An Act relating to waters and water rights; amending
9 82 O.S. 2021, Section 1324.16, which relates to
10 training requirements for board members of a rural
11 water district or a nonprofit rural water
12 corporation; permitting the Oklahoma Water Resource
13 Board to organize training workshops in cooperation
14 with a qualified state supplier; and providing an
15 effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 82 O.S. 2021, Section 1324.16, is
18 amended to read as follows:

19 Section 1324.16. A. Except as otherwise provided by law:

20 1. The term of office of every member elected to an original
21 board shall be until the date of the annual meeting of the
22 participating members of either the first, second or third year
23 following the year of the incorporation of the district. Members
24 shall serve until their successors are elected and have qualified.
As nearly as possible, the terms of an equal number of directors on
any such board shall expire on each of the dates;

1 2. The bylaws of the district shall specify the length of the
2 term of office of its directors, which term shall not exceed six (6)
3 years. At the annual meeting of each year after the year of the
4 election of the original board members, elections shall be held to
5 elect directors to fill any position on the board, the term of
6 office of which has expired, and any director so elected shall hold
7 office until a successor is elected and has qualified. A director
8 may be elected to succeeding terms without limitation; and

9 3. For the purpose of election of board members and for such
10 other purposes as the bylaws may prescribe, annual meetings of
11 participating members shall be held by each district each year
12 following the year of incorporation of such district. The board of
13 directors shall cause notice of the time and place of each annual
14 meeting and the purpose thereof to be given to each of its
15 participating members. Each participating member shall be entitled
16 to a single vote, regardless of the number of benefit units to which
17 the member has subscribed.

18 B. 1. A requirement for qualification to serve as a board
19 member for a rural water district or a nonprofit rural water
20 corporation shall be a written pledge that upon election such board
21 member shall attend a minimum of six (6) hours of workshop training
22 to be offered periodically on a regional basis within twelve (12)
23 months following election of such board member, and to be organized
24 by the Oklahoma Water Resources Board in cooperation with the

1 Oklahoma Rural Water Association or a qualified state supplier with
2 the purpose of study and instruction in areas of district financing,
3 law, and the ethics, duties and responsibilities of district board
4 members. Beginning July 1, 2001, all new and existing board members
5 shall be required to obtain continuing education by attending a
6 minimum of six (6) hours of workshop training every three (3) years.

7 2. The district or corporation shall reimburse all reasonable
8 expenses incurred by any board member for attending such training
9 workshop.

10 3. To avoid members having to interfere with their jobs or
11 employment, such training sessions may be divided into three-hour
12 segments, and insofar as possible be scheduled for evening sessions.
13 Technology center school facilities, college facilities or other
14 public facilities may be utilized in all parts of the state for
15 convenience of the members. Such workshops must be offered within
16 seventy-five (75) miles of the members' residences.

17 C. Should any pledging board member fail to attend the workshop
18 training as required in subsection B of this section, he or she
19 shall be deemed ineligible to serve as a board member commencing at
20 the next regularly scheduled meeting of the board following the
21 twelve-month period. The remaining board members shall select from
22 the membership, as provided by the district or corporation bylaws,
23 another qualified member to fill the vacancy and that person shall
24 pledge to attend the workshop training provided for in this section.

1 The appointed member shall only serve until the next regularly
2 scheduled election of board members and an election shall be held to
3 fill the unexpired term of the vacated position.

4 D. Upon the election of a board member, the provisions of
5 Sections 481 through 487 of Title 21 of the Oklahoma Statutes
6 relating to nepotism shall not prohibit any employee already in the
7 service of the district from continuing in such service or from
8 promotion therein. Provided, however, the board member related to
9 the employee shall be excused from the board meeting during any
10 discussion of or action taken on any matter that could affect the
11 employment or compensation for employment of such employee.

12 SECTION 2. This act shall become effective November 1, 2026.

13 Passed the House of Representatives the 23rd day of March, 2026.

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Presiding Officer of the House
of Representatives

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18 Passed the Senate the ____ day of _____, 2026.

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Presiding Officer of the Senate

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